

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 13, 2026
8:30 AM/1:30 PM

15. CATHERINE GARAVITO V. FRANK GARAVITO

24FL1127

Petitioner filed a Request for Order (RFO) on April 1, 2026, seeking leave to amend the Petition for Legal Separation, to a Petition for Dissolution. Respondent was personally served on April 15, 2026. It is unclear whether Respondent was served with a blank FL-320.

Respondent has not filed a responsive declaration.

Petitioner appeared for the hearing on May 28, 2026. Respondent did not appear. The court found the service on Respondent was defective due to the lack of a blank FL-320. The court continued the matter to August 13, 2026 at 1:30 PM in Department 5 and directed Petitioner to serve Respondent with a copy of the minute order continuing the hearing and a blank FL-320.

Upon review of the court file, there is no Proof of Service showing Respondent was properly served.

Respondent has not filed a responsive declaration.

The court drops the matter from calendar.

Respondent filed an RFO on May 20, 2026 seeking a modification of child custody and parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on July 2, 2026 and a review hearing on August 13, 2026. Upon review of the court file, there is no Proof of Service showing Petitioner was properly served.

Nevertheless, both parties appeared at CCRC and reached a full agreement. The court submitted a stipulation to the court, which was adopted as its order on July 6, 2026. The court, therefore, finds Respondent's RFO to be moot and drops the matter from calendar.

All prior orders remain in full force and effect.

TENTATIVE RULING #15: PETITIONER'S APRIL 1, 2026 RFO IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

RESPONDENT'S MAY 20, 2026 RFO IS DROPPED FROM CALENDAR DUE AS MOOT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR

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BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.